

HOUSE BILL 1449

By Gillespie

AN ACT to amend Tennessee Code Annotated, Title 7;  
Title 39; Title 40; Title 55 and Title 68, relative to  
street drag racing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-501(1), is amended by deleting "Drag racing" and substituting "Street drag racing".

SECTION 2. Tennessee Code Annotated, Section 55-10-501(1), is amended by adding the following as a new subdivision:

(F) The use of one (1) or more motor vehicles for the purpose of performing motor vehicle drifting stunts or reckless driving for spectators;

SECTION 3. Tennessee Code Annotated, Section 55-10-501(1)(E), is amended by deleting "made orally, in writing, or otherwise" and substituting "made orally, on a social media platform, in writing, or otherwise".

SECTION 4. Tennessee Code Annotated, Section 55-10-501, is amended by deleting subdivision (2) and substituting:

(2) "Participant" means a person who operates a motor vehicle upon the public highways of this state, or that of any municipality or political subdivision thereof, for the purpose of street drag racing, and also any person who arranges for, organizes, promotes, supervises, or in any way and manner sets in motion any street drag racing, regardless of whether or not such person may be the operator of, a passenger in, or a spectator of any motor vehicle participating in street drag racing; and

SECTION 5. Tennessee Code Annotated, Section 55-10-501, is amended by adding the following as a new subdivision:

( ) "Drifting" means the act of steering a vehicle in a turn in an attempt to make the rear wheel or wheels of the vehicle lose traction and create a controlled or uncontrolled skid sideways;

SECTION 6. Tennessee Code Annotated, Section 55-10-502(a), is amended by deleting "shopping center, trailer park" and substituting "shopping center, commercial property, trailer park".

SECTION 7. Tennessee Code Annotated, Section 55-10-502, is amended by deleting subsection (c) and substituting:

(c) A motor vehicle used to commit the offense of street drag racing or to flee after the commission of the offense of street drag racing is:

(1) Subject to being impounded for the purpose of collecting evidence pertaining to the offense. All towing and impounding fees must be assessed against the person charged with a violation of subsection (a).

(2) Upon conviction for the offense, subject to seizure and forfeiture as provided in title 40, chapter 33, part 1.

SECTION 8. Tennessee Code Annotated, Section 55-10-502, is amended by adding the following as a new subsection:

(d) A law enforcement officer who has arrested a person for the commission of the offense of street drag racing shall not issue a citation to the arrested person in lieu of the continued custody and the taking of the arrested person before a magistrate.

SECTION 9. Tennessee Code Annotated, Section 55-10-502, is amended by deleting "Drag racing" and substituting "Street drag racing" and by deleting "drag racing" wherever it appears and substituting "street drag racing".

SECTION 10. Tennessee Code Annotated, Section 55-10-503, is amended by deleting "drag racing" wherever it appears and substituting "street drag racing".

SECTION 11. Tennessee Code Annotated, Section 39-13-103(b), is amended by adding the following new subdivision (b)(5) and redesignating the current subdivision (b)(5) as subdivision (b)(6):

(5) Reckless endangerment by street drag racing, as defined in § 55-10-501, is a Class E felony.

SECTION 12. Tennessee Code Annotated, Section 7-3-312(b)(4), is amended by deleting "Drag racing" and substituting "Street drag racing".

SECTION 13. Tennessee Code Annotated, Section 39-13-213(a)(3), is amended by deleting "drag racing" and substituting "street drag racing".

SECTION 14. Tennessee Code Annotated, Section 40-4-122(b)(4), is amended by deleting "Drag racing" and substituting "Street drag racing".

SECTION 15. Tennessee Code Annotated, Section 55-10-206(b), is amended by deleting "drag racing" and substituting "street drag racing,".

SECTION 16. Tennessee Code Annotated, Section 55-10-306(b)(2), is amended by deleting "drag racing" and substituting "street drag racing".

SECTION 17. Tennessee Code Annotated, Section 55-10-307(b)(4), is amended by deleting "Drag racing" and substituting "Street drag racing".

SECTION 18. Tennessee Code Annotated, Section 68-55-306, is amended by deleting "drag racing" and substituting "street drag racing".

SECTION 19. This act takes effect July 1, 2026, the public welfare requiring it.